IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
SPECIAL BENCH
COURT – 1

ITEM No.125 C.P.(CAA)/82(AHM)2022 in
C.A.(CAA)/49(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Norfolk Business Pvt Ltd **.....Applicants**
Saumya Construction Pvt Ltd

Order delivered on: 03/05/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mrs. Swati Soparkar, Advocate.
For the Respondent :

ORDER

Mrs. Swati Soparkar, Ld. Counsel for the applicant appears.

Ms. Maithili D. Mehta, Ld. Counsel appears for the Income Tax Department and states that through the Assessing Officer's Report dated 27.12.2022, and another Report dated 02.05.2023, they have objected to the approval of the Scheme. She submitted that it appears that the primary object of the Scheme is Tax evasion. Ld. Counsel for the petitioner companies states that she has filed reply to the report dated 27.12.2022. She needs time to file reply to the report dated 02.05.2023. One week's time is allowed to file reply to the report of the Income Tax Department dated 02.05.2023.

Mr. Shiv Pal Singh, Ld. Assistant Director appears for Regional Director's office and states that their report has already been submitted and they do not have any objection if the Scheme is approved.

Mr. Suresh Shrivastava appears for the office of the Official Liquidator and states that their report has been filed and they do not have any objection if the Scheme is approved.

List for hearing before the Regular Bench on 13.06.2023

-SD- -SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Sudha